

Judicial Fund Act, 1986

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 1

Judicial Fund Act, 2043 (1986)

Seal and Publication Date

2043.7.24.2

Certification and Publication Date

2066.10.07

Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.07

Act No. 12 of the year 2043 (1986)

An Act Made to Establish a Judicial Fund

Preamble: Whereas it is desirable to establish a judicial fund as a revolving fund for making the work of refunding court fees, fines, deposits, or bail amounts to be refunded expeditious, for constructing court buildings and residential buildings for judges and other employees working in courts, for the expansion, repair, and maintenance of such buildings, and for carrying out other necessary judicial related works;

Therefore, this Act is enacted by His Majesty King Birendra Bir Bikram Shah Dev on the advice and with the consent of the National Panchayat.

?. Short Title and Commencement: (?) This Act may be called the "Judicial Fund Act, 2043 (1986)".

(?) This Act shall commence on a date appointed by the Government of Nepal by notification published in the Nepal Gazette.

?. Definition: Unless the subject or context otherwise requires, in this Act,-

(?) "Fund" means the Judicial Fund established pursuant to section ?.

(?) "Committee" means the Management Committee formed pursuant to section ?.

(?) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

?. Establishment of Fund: (?) A fund named "Judicial Fund" is hereby established.

(?) The Fund shall be operated as a revolving fund.

?. Amounts to be kept in the Fund: The following amounts shall be kept in the Fund:-

(?) Grants received from time to time from the Government of Nepal,

(?) Amounts of deposits or bail kept by the parties to a case.

?. Use of the Fund: The amount of the Fund shall be expended on the following works:-

(?) To refund court fees, fines, or other amounts that are required to be refunded according to law or a judgment or order of a court,

(?) To refund deposit or bail amounts that are required to be refunded according to a judgment or order of a court,

(?) To pay rewards and other amounts that are required to be paid according to law or a judgment or order of a court,

(?) To construct court buildings, residential buildings for judges and other employees of courts, and to expand, repair, and maintain such buildings, and if necessary, to purchase land therefor,

(?) To expend on any other judicial work that a court is required to perform according to law.

?.